

## 25PR00636 Estate of Thomas A. Hauenstein

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-02-04

Motion: Petition for Letters of Administration

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25pr00636>

Source SHA-256: 6fa5e21ef3a221221cea41486d575ed4d862fc284db0919c0bcc865d419729fa

Tentative Ruling: Estate of Thomas A. Hauenstein

Case Number

25PR00636

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 02/04/2026 - 09:30

Nature of Proceedings

Petition for Letters of Administration

Tentative Ruling

Probate Notes:

Appearances are required.

On December 18, 2025, Janet Dawson filed a Petition for Letters of Administration, alleging Decedent died intestate. On January 20, 2026, Decedent's spouse and child filed an objection to Janet Dawson's petition. In that objection, it is alleged Decedent not only had a will, but also executed a trust that governs the disposition of this estate.

At minimum, the Objection places this matter at issue, requiring evidentiary hearing to resolve. (In re Estate of Lensch (2009) 177 Cal.App.4th 667, 676; Conservatorship of Farrant (2021) 67 Cal.App.5th 370, 377.) At maximum, the petition should be denied if a trust exists and Decedent has no known estate outside of that trust.

The following defects in the original petition must be rectified before it can proceed:

**Proof of Publication.** No proof of publication was filed. Jurisdiction of the Probate Court is obtained by publication in accordance with Article 3 of Division 7, Part 2, Chapter 2 Probate Code. (Prob. Code, § 8003(b).)

Publication requires the notice to be published in a newspaper adjudicated as a newspaper of general circulation in the city of decedent's residence (Prob. Code, §§ 8121, 7122) and to contain the substantially same language and format shown in Probate Code section 8100. If the city of decedent's residence has no newspaper adjudicated as a newspaper of general circulation, publication must occur "in a newspaper of general circulation in the county which is circulated within the area of the county in which the decedent resided or the property is located." (Prob. Code, §8121(b).)

It is unacceptable to merely file a copy of the newspaper clipping as proof of publication. A Petitioner must obtain an affidavit executed under the penalty of perjury by the person with authority to affect publication at the newspaper. (Prob. Code, §8124.)

**PUBLICATION MUST BE IN THE LOMPOC REGISTER.**

**Proof of Service of Notice of Hearing (Form DE-121).** Notice must be given 15 days prior to hearing, served on all known heirs and devisees, as well as on the Personal Representative (if not the petitioner) and special notice requestors. (Prob. Code, §§ 8100 & 8110.) Notice must be sent to the person, not the person's representative. (§1220.) No such document was filed.

**Duties and Liabilities Acknowledgement (Form DE-147).** The proposed personal representative must fill out and sign this form and submit it to the court. (Prob. Code, § 8404.) No such form was submitted.

**Waivers of Bond.** Bond must be waived by all adult heirs at law. Petitioner must file bond waivers (Form DE-142) for all heirs or devisees named in a will.

**Nomination of Administrator.** Petitioner does not have priority of administration over decedent's spouse pursuant to Probate Code section 8461. Please submit a nomination from all those with equal or greater priority. A written declination must be filed by or on behalf of an individual who is entitled to priority for issuance of Letters of administration but does not desire to act, or evidence must be produced that the person with priority is not competent under Probate Code section 8402 or refuses to act. (Local Rule 1752(d)1.)

**Supplement re: Probate vs. Spousal Property Petition.** The petition requests probate of a Decedent's estate who left a surviving spouse. Petitioner must submit supplement explaining why probate of this estate is favorable over the following procedures:

Spousal or Domestic Partner Property Petition (form DE-221)

Affidavit for Disposition of Community Property Real Estate (Probate Code 13540-13541)

Disposition of Community Property Securities (Probate Code 13545)

Affidavit for Collection of Compensation Owed to Deceased Spouse or Registered Domestic Partner (Probate Code 13600)

Proposed Order (Form DE-140). A proposed order must be submitted with relief that matches that requested in the petition.  
No such document was filed with the court.

Proposed Letters (Form DE-150). Proposed letters must be submitted with relief that matches that requested in the petition.  
No such document was filed with the court.

Judges

Judge Patricia Kelly

SM Dept 1

312-M East Cook St. Building E

Santa Maria, CA 93454-5165

US